

The Inflammable Substances Act, 1952

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The Inflammable Substances Act, 1952

UNION OF INDIA

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The Inflammable Substances Act, 1952

Act 20 of 1952

Published on 1 January 1952

Commenced on 1 January 1952

[This is the version of this document from 1 January 1952.]

[Note: The original publication document is not available and this content could not be verified.]

The Inflammable Substances Act, 1952

(Act

No. 20 of 1952

)

137.

An Act to declare certain substances to be dangerously inflammable and to provide for the regulation of their import, transport, storage and production by applying thereto the Petroleum Act, 1934, and the rules thereunder, and for certain matters connected with such regulation.

Be it enacted by Parliament as follows:

The Inflammable Substances Act, 1952 has been extended to the Union territories of Goa, Daman and Diu by Regulation 12 of 1962 (w.e.f. 1.2.1965). Goa is now a State, see Act 18 of 1987, Section 3 (w.e.f. 31.5.1987); Dadra and

Nagar Haveli by Regulation 6 of 1963, as amended by Regulation 2 of 1965 and Pondicherry by Regulation 7 of 1963 (w.e.f. 1.10.1963).

1.

Short title

.This Act may be called The Inflammable Substances Act, 1952 .

2.

Definitions

.In this Act,

(a)

dangerously inflammable substance means any liquid or other substance declared to be dangerously inflammable by this Act;

(b)

Petroleum Act, means the Petroleum Act, 1934.

3.

Declaration of certain substances to be dangerously inflammable

.The liquids and other substances hereinafter mentioned, namely:

(1)

acetone,

(2)

calcium phosphide,

(3)

carbide of calcium,

(4)

cinematograph films having

(5)

ethyl alcohol,

(6)

methyl alcohol,

(7)

wood naphtha, are hereby declared to be dangerously inflammable.

4.

Power to apply Petroleum Act to dangerously inflammable substances

(1)

The Central Government may, by notification in the Official Gazette, apply any or all of the provisions of the Petroleum Act and of the rules made thereunder, with such modifications as it may specify, to any dangerously inflammable substance, and thereupon the provisions so applied shall have effect as if such substance had been included in the definition of petroleum under this Act.

(2)

The Central Government may make rules providing specially for the testing of any dangerously inflammable substance to which any of the provisions of the Petroleum Act have been applied by notification under sub-section (1), and such rules may supplement any of the provisions of Chapter II of that Act in order to adopt them to the special needs of such tests.

5.

Operation of certain notifications and rules

.Notifications or rules issued or purporting to have been issued under section 30 of the Petroleum Act between the 1st day of April, 1937, and the date of commencement of this Act shall be deemed to have been issued or made under this Act, and continue in force accordingly.

6.

Validation of certain acts and indemnity in respect thereof

.All acts of executive authority, proceedings and sentences which have been done, taken or passed with respect to, or on account of, any inflammable substance since the 1st day of April, 1937, and before the commencement of this Act by

any officer of Government or by any person acting under his authority or otherwise in pursuance of an order of the Government in the belief or purported belief that the acts, proceedings or sentences were being done, taken or passed under the Petroleum Act shall be as valid and operative as if they had been done, taken or passed in accordance with law; and no suit or other legal proceeding shall be maintained or continued against any person whatever on the ground that any such acts, proceedings or sentences were not done, taken or passed in accordance with law.

7.

Repeal of section 30, Act 30 of 1934

. [Repealed by the Repealing and Amending Act, 1957 (36 of 1957), section 2 and Schedule I (w.e.f. 17-9-1957).]

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